

		filing number 09-71965238 and on May 27, 2014 as filing number 14-74132617. (Id. at ¶ 13.) In April and May, 2015, the parties entered into an Amended Stipulation. (Decl. of Hong, Ex. F.) The Amended Stipulation changed the principal balance to \$52,638.66 with a new payment schedule. All other terms of the original Stipulation remained. Defendants defaulted on the Stipulation Agreements by failing to make the monthly payment due on May 20, 2021, and each subsequent payment due thereafter. (Decl. of Hong, ¶ 19.) As of the date of the motion was filed (8/11/23), Defendant has not cured the default. Based upon the foregoing, the motion is granted. Judgment in the amount of \$42,351.12 is entered against Defendants. Plaintiff to give notice.
12	2023-01328650 Swift Financial, LLC vs. West Egg Enterprises, Inc.	Swift Financial, LLC Petition to Confirm Arbitration Award Petitioner Swift Financial, LLC's petition for confirmation of its arbitration award in the amount of \$119,091.84 in its favor and against respondents West Egg Enterprises and Jermaine Massey is granted. The Petition attaches a signed consent to immediate confirmation of this arbitration award in this Court. Thus, the Court will enter Judgment against both properly served Respondents.
13	2023-01301637 In Re: 22145 Pheasant Street, Lake Forest, CA 92630	Petitioner Quality Loan Service Corp Motion for Claims to Surplus Funds The claim by Orange County Department of Child Support Services ("Claimant") for \$9,268.39 of the surplus funds deposited by Petitioner Quality Loan Service Corp. is granted. Claimant showed it recorded an Abstract of Judgment with the Orange County Recorder's Office relating to the child support orders issued on 1/26/2009 and 11/9/2010. Claimant also showed that as of the date of the Trustee's Sale, 11/29/2021, Poema E. Brandom, also known as Poema Smith, owed \$9,268.39 in unpaid child support obligations. Claimant showed Claimant is entitled to \$9,268.39 of the surplus funds. No claims having been asserted to the balance of the \$164,349.34 deposited by Petitioner. The remaining balance of \$155,080.95 are the remaining undistributed surplus proceeds from the Trustee's sale for the property located at 22145 Pheasant Street, Lake Forest, CA 92630. The court orders that the funds will stay on deposit until such time as a claim to the funds is asserted or the funds either escheat to the State pursuant to Code Civ. Proc. § 1519 or are transferred to the court's operating fund under Code Civ. Proc §1502 and Govt. Code §§68084.1. An OSC re Dismissal is set for 12/3/26 at 9:30AM at which time the Court will consider finding the funds subject to escheatment. Clerk to provide notice.

14	2019-01056036 GFRS Equipment Leasing Fund II, LLC, vs. Essence Water, Inc.,	Judgment Creditor GFRS Equipment Leasing Fund II, LLC Motion to Amend Judgment The Court denies Judgment Creditor GFRS Equipment Leasing Fund II, LLC’s Motion to amend the judgment pursuant to Code Civ. Proc. § 187 to add alter ego/successor entity C & B Beverage to the judgment. A. Legal Standard A motion to amend the judgment pursuant to Code Civ. Proc. § 187 gives the trial court the authority to amend a judgment to add additional judgment debtors. The theory underpinning this procedure is that the court is not really amending the judgment, but is merely inserting the correct name of the real defendant. [<i>NEC Electronics Inc. v. Hurt</i> (1989) 208 Cal. App. 3d 772; <i>McClellan v. Northridge Park Townhome Owners Ass’n, Inc.</i>, (2011) 89 Cal. App. 4th 746, 107.] A noticed motion is required to amend a judgment under Code of Civil Procedure section 187. (<i>Wells Fargo Bank, N.A. v. Weinberg</i> (2014) 227 Cal. App. 4th 1, 9.) However, the court is not required to hold an evidentiary hearing. (<i>Highland Springs Conference & Training Center v. City of Banning</i> (2016) 244 Cal. App. 4th 267, 280 [evidence in the form of declarations or deposition testimony will suffice].) In order for the court to grant the motion, two requirements must be met: (1) the new party must be the alter ego of the old party, and (2) in order to satisfy due process concerns, the new party must have controlled the litigation. Absent such control, the alter ego is a true nonparty. (<i>See Minton v. Cavaney</i> (1961) 56 Cal. 2d 576; <i>Jack Farenbaugh & Son v. Belmont Construction, Inc.</i> (1987) 194 Cal. App. 3d 1023.) To prevail on a motion to amend a judgment to add an alter ego, the judgment creditor must show, by a preponderance of the evidence, that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding, (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist, and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (<i>Highland Springs Conference & Training Center v. City of Banning</i> (2016) 244 Cal. App. 4th 267.) B. Merits Here, Creditor tells the court that Judgment Debtors appeared to have transferred the operation of the business and brand by Essence Water and Joel Gabriel to C & B Beverage LLC, a Nevada limited liability company with its sole registered member Janelle Gabriel – Debtor Joel’s wife. (Jen Dec. ¶¶ 6-9; Exhibits C-G). The operations, brand, and products of Essence Water appears to have been fully transferred to the Third-Party Obligors, which was conveniently formed less than two (2) months after the April 2021 Assignment Order was issued by the Court. (Jen Dec. ¶8; Exhibits E). Similarly, Joel has admitted and affirmed that he is also the Director of Operations in the new closely held corporation, C & B Beverage. (Jen Dec. ¶ 10; Exhibit F). The Court questions the admissibility of some of the evidence provided.
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